

25STCV34418 25STCV34418

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Case Number: 25STCV34418 Hearing Date: July 9, 2026 Dept: 510

No.

14 - Joshua Eldman v. Hyundai Motor America

Plaintiff Joshua Eldman's Motion for Evidentiary

Sanctions Against Defendant

Plaintiff

Joshua Eldman moves for evidentiary sanctions against Defendant Hyundai Motor America.

Request

for Judicial Notice

Plaintiff requests the Court take

judicial notice of a California Senate Judiciary Committee analysis of AB 1755.

The Court declines to do so; this document is irrelevant to the Court's decision on the instant motion. Plaintiff's request for judicial notice is denied.

Evidentiary

Sanctions

California

Code of Civil Procedure section 871.26, enacted through AB 1755 and effective January 1, 2025, establishes a mandatory framework for discovery in automotive warranty actions. Code of Civil Procedure section 871.26(c) requires parties to conduct initial depositions within 120 days after the filing of the answer. In addition, section 871.26(d) requires the parties to schedule mediation within

90 days after the filing of the answer.

Under

Code of Civil Procedure section 871.26(j), “Unless the party failing to comply with this section shows good cause . . . a court shall impose sanctions as follows: [¶] (4) For a manufacturer's or defendant's repeated noncompliance with subdivision (b), (c), or (d), a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so.”

Here,

Defendant filed its answer on January 26, 2026. Therefore, initial depositions were to be conducted on or before May 26, 2026, and mediation was to be scheduled by the parties on or before April 27, 2026.

Plaintiff

requests the Court impose evidentiary sanctions on Defendant because it has failed to timely provide dates for a PMQ deposition and schedule mediation despite five written requests from Plaintiff sent from March 2026 through May 2026. Plaintiff argues the Court must impose this sanction because Defendant has repeatedly failed to comply with section 871.26 requirements and does not establish any good cause for its failure.

The

Court finds that Defendant has repeatedly failed to comply with section 871.26 requirements. Defendant has not shown good cause for its failure to timely comply with section 871.26's requirements. While Defense counsel attests that he has been “diligent in securing PMQ availability,” but failed to timely comply due to the influx in Song Beverly cases (Olives Decl., ¶ 2), this does not excuse noncompliance with the statute.

The

Court notes that after this motion was filed, Defendant provided two available dates for a PMQ deposition. In reply, however, Plaintiff argues that Defendant has still failed to schedule mediation.

The

Court exercises its discretion to impose evidentiary sanctions if Defendant fails to comply with section 871.26's requirements within 14 calendar days.

Disposition

Plaintiff Joshua Eldman's motion for evidentiary sanctions against Defendant is provisionally granted in part.

The

Court will order the evidentiary sanctions mandated by CCP section 871.26(j) if Defendant fails to meet the requirements of section 871.26, subdivisions (c) and (d) within 14 calendar days. If both requirements are met within that time period, the Court will not impose the evidentiary sanctions. The hearing on the motion is continued to August 6, 2026 at 8:30 am. On or before July 30, 2026, counsel for Defendant is to file a sworn statement either confirming compliance – meaning that Defendant presented its PMQ for deposition and that the parties have scheduled a mediation – or lack of compliance. If there is a lack of compliance without a good faith basis, the Court will at that time entertain entering evidentiary sanctions.